Galveston County District Court

Cause No. 2025-CV-0024

Sara Duncan, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	3-9-25
Counsel for defendant:	Stephanie Williams, Ashford & Lyle LLP

Defendant denies each and every allegation contained in Plaintiff's Original Petition, except those allegations expressly admitted below, and demands stirct proof thereof as required by the Texas Rules of Civil Procedure. Defendant further denies that Plaintiff is entitled to any of the relief requested in the Petition.

For further answer, and without assuming any burden of proof that Texas law places on Plaintiff, Defendant asserts the following affirmative defenses.

First, the collision was low-speed and the impact forces involved were insufficient to cause the injuries Plaintiff claims. Plaintiff's alleged injuries, to the extent they exist, were caused by preexisting conditions, degenerative changes, or unrelated events and not by the occurrence made the basis of this suit.

Second, Plaintiff failed to exercise ordinary care to mitigate damages, including by delaying necessary treatment, failing to follow medical advice, and incurring medical expenses that are unreasonable or unnecessary. Any recovery must be reduced accordingly.

Third, if Plaintiff was negligent in any manner that proximately caused or contributed to the collision or the damages claimed, Defendant invokes Texas proportionate responsibility under Chapter 33 of the Texas Civil Practice and Remedies Code, and any recovery must be reduced or barred in accordance with that chapter.